



AN ACT GENERALLY REVISING LAWS REGARDING STUDENT EMPLOYMENT FOR HIGH SCHOOL CREDIT IN PUBLIC SCHOOLS AND NONPUBLIC SCHOOLS; PROVIDING THAT 11TH AND 12TH GRADE STUDENTS MAY EARN CREDIT TOWARD HIGH SCHOOL GRADUATION THROUGH EMPLOYMENT ON A PAID OR VOLUNTARY BASIS IN CERTAIN CARE SETTINGS; ALLOWING A PUBLIC HIGH SCHOOL OR NONPUBLIC HIGH SCHOOL TO IMPOSE CONDITIONS AND REQUIREMENTS ON WORK PERFORMED TO QUALIFY FOR HIGH SCHOOL CREDIT; PROVIDING DEFINITIONS; AND PROVIDING AN EFFECTIVE DATE.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Credit for employment -- congregate-care facilities, child-care facilities, and school-age programs. (1) A student who is in 11th or 12th grade at a public school or nonpublic school and who is employed on a paid or voluntary basis at a congregate-care facility, child-care facility, or school-age program may earn one elective credit toward graduation for every 250 hours worked at the congregate-care facility, child-care facility, or school-age program. The maximum number of elective credits that may be earned toward graduation is two credits.

(2) The public school or nonpublic school shall develop a written application for the student seeking elective credit under this section. The application form must include the following information:

- (a) the student's name;
- (b) the name, address, and contact information for the congregate-care facility, child-care facility, or school-age program at which the student is employed;
- (c) the name of an individual supervising the student at the congregate-care facility, child-care facility, or school-age program;
- (d) a description of the work the student is performing at the congregate-care facility, child-care

facility, or school-age program; and

(e) the number of hours the student is employed at the congregate-care facility, child-care facility, or school-age program.

(3) The public school or nonpublic school shall establish:

(a) deadlines for submission of the application; and

(b) a process for verification of the number of hours the student works at the congregate-care facility, child-care facility, or school-age program.

(4) The public school or nonpublic school may establish conditions and requirements on the type of work the student is performing that the student shall satisfy to earn elective credit toward graduation.

(5) The public school or nonpublic school may not award elective credit to the student unless the school approves the student's application and the student has satisfied all of the requirements under this section.

(6) For the purposes of this section, the following definitions apply:

(a) "Child-care facility" means a day-care center, group day-care home, or family day-care home licensed or registered under the provisions of Title 52, chapter 2, part 7.

(b) "Congregate-care facility" has the same meaning as:

(i) "community residential facility" as defined in 76-2-411;

(ii) "developmental disabilities facility" as defined in 53-20-202;

(iii) "long-term care facility" as defined in 50-5-101; and

(iv) "residential care facility" as defined in 50-5-101.

(c) "School-age program" means a program serving children 5 years of age or older during the school year or summer.

Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 20, chapter 7, part 3, and the provisions of Title 20, chapter 7, part 3, apply to [section 1].

Section 3. Effective date. [This act] is effective July 1, 2025.

- END -

I hereby certify that the within bill,
HB 381, originated in the House.

Chief Clerk of the House

Speaker of the House

Signed this _____ day
of _____, 2025.

President of the Senate

Signed this _____ day
of _____, 2025.

HOUSE BILL NO. 381

INTRODUCED BY E. BUTTREY

AN ACT GENERALLY REVISING LAWS REGARDING STUDENT EMPLOYMENT FOR HIGH SCHOOL CREDIT IN PUBLIC SCHOOLS AND NONPUBLIC SCHOOLS; PROVIDING THAT 11TH AND 12TH GRADE STUDENTS MAY EARN CREDIT TOWARD HIGH SCHOOL GRADUATION THROUGH EMPLOYMENT ON A PAID OR VOLUNTARY BASIS IN CERTAIN CARE SETTINGS; ALLOWING A PUBLIC HIGH SCHOOL OR NONPUBLIC HIGH SCHOOL TO IMPOSE CONDITIONS AND REQUIREMENTS ON WORK PERFORMED TO QUALIFY FOR HIGH SCHOOL CREDIT; PROVIDING DEFINITIONS; AND PROVIDING AN EFFECTIVE DATE.